

The Court has reviewed the Application and it is **approved**.

**12. 9:00 AM CASE NUMBER: C25-03121**

**CASE NAME: JACOB CANALE VS. KELLY BOZARTH**

**\*HEARING ON MOTION IN RE: FOR SANCTIONS**

**FILED BY: BOZARTH, KELLY**

**\*TENTATIVE RULING:\***

Before the Court is Defendants' Center for Social Dynamics, LLC, and Kelly Bozarth's Motion for Sanctions.

Defendants' Motion for Sanctions is **denied**.

### **Procedural Background**

Plaintiff filed the initial Complaint on October 23, 2025. It asserted a single cause of action for violation of the Private Attorneys General Act, California Labor Code § 2698 et seq.

On March 16, 2026, Defendants filed a demurrer and a motion to strike directed toward the Complaint. Thereafter, on April 15, 2026, Defendants filed the instant motion for sanctions arguing that Plaintiff's Complaint "lack[s] facial merit of any kind."

The hearings on Defendants' demurrer and motion to strike were scheduled for July 23, 2026. The Court issued its tentative rulings on July 22. The tentative ruling overruled the demurrer as to Defendant Center for Social Dynamics and sustained the demurrer as to Ms. Bozarth – with leave to amend. The tentative ruling denied the motion to strike. No party contested the tentative rulings – so they became the order of the Court as of 4:00 p.m. on July 22. (Local Rule 3.43 (2).)

### **Legal Standard**

"Under section 128.7, an attorney or unrepresented party who files a pleading, motion, or similar paper must sign the document, which impliedly certifies the pleading has legal and factual merit." (*Levy v. Blum* (2001) 92 Cal.App.4th 625, 636.) "The signature reflects the certification of the attorney or unrepresented party that the pleading is not being presented for an improper purpose; the legal contentions are warranted by law or nonfrivolous argument for extension, modification or reversal of existing law; the allegations and factual contentions have evidentiary support or are likely to have such support after a reasonable opportunity to further investigate; and the denials of factual contentions are warranted by the evidence." (*Ibid.*)

In short, "Code of Civil Procedure section 128.7 allows sanctions to be imposed upon attorneys who present to the court claims, defenses or legal contentions not warranted by existing law, and allows sanctions against parties and attorney when pleadings are presented primarily for an improper purpose, such as to harass or cause a needless increase in the cost of litigation." Section 128.7 imposes a lower threshold for sanctions against an attorney than section 128.5. "Section 128.7 'requires only that the conduct be 'objectively unreasonable' ...." (*Burkle v. Burkle* (2006) 144 Cal.App.4th 387, 401.)

### **Analysis**

“Section 128.7 provides a trial court with the discretionary authority to impose sanctions when a party files a pleading that is factually or legally frivolous.” (*Peake v. Underwood* (2014) 2277 Cal.App.4th 428, 432.)

The Court, in overruling Defendants’ demurrer and denying their motion to strike, has already determined that the Complaint in this matter is not factually nor legally frivolous. The Defendants did not contest that determination – and that decision became the Order of the Court on July 22. Accordingly, Defendants’ motion for sanctions must fail.

In Opposition, Plaintiff argues that he should be awarded sanctions for opposing the motion. The Code states: “If warranted, the court may award to the party prevailing on the motion the reasonable expenses and attorney’s fees incurred in presenting or opposing the motion.” The Court finds that sanctions against Defendants are not warranted under the circumstances of this case.

### **Conclusion**

Defendants’ Motion for Sanctions is **denied**.

**13. 9:00 AM CASE NUMBER: C25-03530**

**CASE NAME: JOHN RUBIO VS. SUSANNE KIM**

**HEARING ON DEMURRER TO: COMPLAINT**

**FILED BY:**

**\*TENTATIVE RULING:\***

This hearing was vacated.

**14. 9:00 AM CASE NUMBER: C26-00119**

**CASE NAME: FRANK YOUNGMAN, IV VS. DAVID TU**

**\*HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**

**FILED RE: MICHAEL R. WILLATS**

**FILED BY: ENCORE GROUP (USA) LLC, A DELAWARE LIMITED LIABILITY COMPANY**

**\*TENTATIVE RULING:\***

The Court has reviewed the Application and it is **approved**.

**15. 9:00 AM CASE NUMBER: C26-01170**

**CASE NAME: JOLENE SOLIMAN VS. FCA US LLC**

**\*HEARING ON MOTION IN RE: COMPEL INITIAL DISCLOSURES**

**FILED BY: SOLIMAN, JOLENE**

**\*TENTATIVE RULING:\***

Plaintiff Jolene Soliman seeks to compel Defendant FCA US LLC to provide complete initial disclosures. Defendant opposed the Motion, stating that it provided all initial disclosures, absent the ones for